

certificate, and found 200*l.* a-year to be as much as the lands were worth. Hereupon the Lord Chancellor gave a day to shew cause, why the cause should not be decreed, which was the Order, quarto Maii, 1610. After this the lord Hobart, then Attorney, in the presence of the master of the rolls himself, did set down the defects of his own report.

*Lord-Treasurer.* My lords, this is contrary to all course, this must not be; for we mean not to enter into the merits of the cause.

*Mr. Attorney Yelverton.* Mr. Wraynham, for you to shift it off, doth but aggravate your offence; for when you say, you used the rest of your phrases as *synonymics* to injustice, that implieth a taxation of his lordship in point of justice; and so likewise do your words imply, when you say, by the greatness of his wit and eloquence he doth palliate the injustice of the cause: therefore tax my lord particularly with one point of injustice.

Here Mr. Wraynham would not instance in any one particular.

*Wrayn.* Had I thought his majesty would not have heard my cause, I would have sat down in silence, and have devoured my sorrow. I have formerly set down to your lordships, that my decree was reversed without a bill.

*Mr. Attorney.* That is, when the bill is absolute and constant, for there it must have a bill of revivor; but when it depends upon subsequent acts, and is qualified and conditional, there it may be reversed without bill.

*Wrayn.* I humbly submit myself in all things to your honourable and clement censure: for the manner, I beseech your lordships pardon; and for the matter, I humbly crave compassion.

*Mr. Serjeant Crew.* May it please your lordships, the prisoner at the bar hath made a good submission at the last, I would he had begun with it. My lords, the flux of foul mouths must be stopped, otherwise the greatest magistrates will be traduced and slandered to majesty himself; and though it be not treason, yet I have heard it from a great and honourable person sitting in this place, that it is *crimen læsæ majestatis*. My lords, for the two lords, the one that lives, the other that is dead, and their demeanor in this case, in honour of him that is dead, and without flattery to him that is alive; I say, they both judged according to their consciences. The Lord Chancellor that is dead, gave his judgment according to his conscience, and not according to the conscience of another man, but according to the integrity of his own heart: for the judges are to judge *secundum æquum et bonum in foro conscientiarum*. And this lord also judged out of his noble conscience and integrity of his heart; for, my lords, there was no binding decree. As for the merits of the cause, it must not be examined of the one side, nor of the other, for both lords have done according to conscience *coram Deo et hominibus*. And each hath delivered his own sense according to their consciences. The lord which is dead, when he was alive, was one of the oracles of the wisdom

of the time; and my living lord attributes very much unto him, whom God hath also enriched with great ornaments of nature; for no man, no magistrate, hears with more attention, nor no magistrate of justice attends with more understanding and patience. You then, Mr. Wraynham, thus to traduce my lord, is a foul offence, with that black mouth of yours: you cannot traduce him of corruption, for thanks be to God, he hath always despised riches, and set honour and justice before his eyes; and where the magistrate is bribed, it is a sign of a corrupted estate. For the justice of the cause; my lords, I was of counsel with Fisher, and I knew the merits of the cause; for my Lord Chancellor seeing what recompence Fisher ought in justice to have received, and finding a disability in Wraynham to perform it, was enforced to take the land from Wraynham to give it to Fisher, which is hardly of value to satisfy Fisher's true debt and damages. And this, my lords, was the true course of it; so it stands upon these parts your lordships have heard. I am glad at last to hear Mr. Wraynham's Submission, and do humbly crave your lordship's censure.

*Sir Edward Coke.* The cause before you, my lords, is a very great cause, for a man must tread in this course upon a very slender bridge: I will single out, as near as I can, the state of the question, and then I will shew you in others, upon what words, and in what I shall ground my sentence: for a complaint to the king's majesty, or a petition by any man that thinks himself wronged, I hold that regularly to be no offence. God forbid it should be so: I can make no hedge between the sovereign and the subject; nay, in some kingdoms, *Querelas subditorum detrahere in principe deserentur capitale est*. And that would be derogation from a monarch, that no subject should complain unto him; yet upon the statute of Westminster, and at common law, I make no question, but to shew you, that where petitions were made to the king in an unfit manner, they have been severely punished. Our case is now particularly in a sentence given by my Lord Chancellor, an eminent Judge in this Court, and a sole Judge in the highest Court of Equity that is in this kingdom; yea, this case is after sentence, and against the sentence, and with many such scandalous and opprobrious terms against so high a Judge; and that not in paper, but in a book presented to the king: this book in my hand, which the king hath delivered to the attorney-general, that it might come before us for due punishment. Whether this Book be justifiable, or no; that is the question.

It is a black Book, *Est jam conveniens luctus iste color*. And it is a strange Book for some things that I will shew you, for it is no petition; and yet I will confirm every word I say by ancient and modern authorities; whereof, I am sorry, very sorry in good faith, for the excellent and worthy parts that are in you, Mr. Wraynham. Now mark your own words in your Book; you call it a *Review*, or